

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202307044	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 07/26/2023 4:00 AM	Location of Incident: West 44th Street and 8th Avenue subway station	18 Mo. SOL 1/26/2025	Precinct: 14
Date/Time CV Reported Mon, 07/31/2023 2:50 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 07/31/2023 2:50 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Gerald Suam	20361	962820	TD 01 LTP
2. PO Nelson Roldan	16013	937423	TD 01 LTP
3. PO Labeat Qosja	08520	962030	TD 01 LTP
4. PO Raphael Russell	21545	959957	TD 01 LTP

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Thomas Puleo	02045	954249	TB MAN TF

Officer(s)	Allegation	Investigator Recommendation
A . PO Gerald Suam	Force: Police Officer Gerald Suam used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Nelson Roldan	Force: Police Officer Nelson Roldan used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Raphael Russell	Force: Police Officer Raphael Russell used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Labeat Qosja	Force: Police Officer Labeat Qosja used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Gerald Suam	Force: Police Officer Gerald Suam used pepper spray against § 87(2)(b)	E . Substantiated

Case Summary

On July 31, 2023, § 87(2)(b) filed this complaint with the CCRB over the phone.

On July 26, 2023, at approximately 4:30 AM, § 87(2)(b) entered the 42nd Street - Port Authority Bus Terminal A-C-E train subway station, located at West 44th Street and 8th Avenue in Manhattan. § 87(2)(b) did not pay to enter the station. Police Officer Gerald Suam, Police Officer Nelson Roldan, Police Officer Raphael Russell, and Police Officer Labeat Qosja of Transit District 1 approached § 87(2)(b) and asked him to pay his fare or to exit the station and § 87(2)(b) refused. PO Suam, PO Roldan, PO Russell, and PO Qosja grabbed § 87(2)(b) by the arms to place him under arrest (**Allegation A, B, C and D: Force, within NYPD guidelines**). § 87(2)(b) flailed his arms and slapped PO Suam. § 87(2)(b) went limp and lay on the floor. PO Suam and the officers continued to grab § 87(2)(b) arms, and § 87(2)(b) continued to flail his arms and kick his legs. PO Suam took out his pepper spray and deployed it at § 87(2)(b) face (**Allegation E: Abuse of Authority, substantiated**). The officers placed § 87(2)(b) in handcuffs and transported him to § 87(2)(b) Hospital for pepper spray irritation. § 87(2)(b) was arrested for theft of services, resisting arrest, obstructing governmental administration and criminal trespass.

The investigation received BWC video footage for this incident. It is attached to IA #53 (**BR13**).

Findings and Recommendations

Allegation (A) Force: Police Officer Gerald Suam used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Nelson Roldan used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Raphael Russell used physical force against § 87(2)(b)

§ 87(2)(b)

Allegation (D) Force: Police Officer Labeat Qosja used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Gerald Suam used pepper spray against

§ 87(2)(b)

§ 87(2)(b) stated (**BR1**) that he entered the mezzanine level of the subway station and observed PO Suam and PO Roldan behind the turnstiles. § 87(2)(b) waved at the officers. PO Suam and PO Roldan looked at § 87(2)(b) but did not acknowledge him. § 87(2)(b) jumped over the turnstiles and PO Suam yelled out, "Stop!" § 87(2)(b) stood still, and PO Suam and PO Roldan approached him. PO Suam told § 87(2)(b) that he needed to exit the station and to pay his fare. § 87(2)(b) told PO Suam that he needed to take the train to get home. PO Suam reiterated that § 87(2)(b) needed to pay his fare to take the subway. § 87(2)(b) told PO Suam that he did not have money and that PO Suam should let him go. PO Suam replied, "No, just go back." and called for additional officers to the location. PO Suam pushed § 87(2)(b) with one hand in the upper stomach and then again in the lower chest area. § 87(2)(b) did not fall nor felt pain from PO Suam's pushes. § 87(2)(b) told PO Suam, "I'm trying to go home. Don't put your hands on me." PO Suam lifted his left hand and attempted to push § 87(2)(b) again and this time, § 87(2)(b) smacked PO Suam's hand away. PO Suam and the other officers grabbed § 87(2)(b) and held him with his back against the wall. The officers grabbed § 87(2)(b) arms and attempted to place them behind his back. § 87(2)(b) told the officers, "No!" The officers held § 87(2)(b) wrist and took § 87(2)(b) to the floor and applied handcuffs to one of § 87(2)(b) wrists. § 87(2)(b) lay in the fetal position. § 87(2)(b) heard an officer tell him, "You're arrested, put your hands behind your back." PO Suam deployed his OC spray at § 87(2)(b) face while the other officers attempted to connect both cuffs to his hands. § 87(2)(b) could not see and coughed after he was sprayed by PO Suam. § 87(2)(b) continued to lie in a fetal position and experienced difficulty breathing of the pepper spray. § 87(2)(b) did not claim any other injuries. An officer connected § 87(2)(b) handcuffs and

approximately ten minutes later, EMTs arrived, and he was transported to § 87(2)(b) Hospital and treated with an eye wash. § 87(2)(b) was charged with theft of services, resisting arrest, obstructing governmental administration and criminal trespassing. § 87(2)(b) was transported to Manhattan Central Booking and his charges were dismissed.

PO Suam's CCRB statement (**BR2**) was largely consistent with § 87(2)(b) statement with a few differences. PO Suam stated that he was familiar with § 87(2)(b) prior to the incident. PO Suam stated that § 87(2)(b) frequently entered the station without paying. On the day of the incident, PO Suam stated that § 87(2)(b) walked inside the station by using an emergency gate. PO Suam approached § 87(2)(b) and asked him to pay his fare or to exit multiple times. Each time, § 87(2)(b) refused and walked closer to the platform. PO Suam stated that § 87(2)(b) was considered trespassing when he refused to exit the station, an arrestable offense. PO Suam called for additional officers to the location and PO Russell and PO Qosja came running to the location.

PO Suam stated (**BR2**) that he attempted to grab § 87(2)(b) arms to place him under arrest and § 87(2)(b) pulled away, tucked his arms under his chest. PO Suam described § 87(2)(b) as a tall individual, with a muscular build and "very strong." PO Roldan, PO Russel, and PO Qosja attempted to grab § 87(2)(b) arms. § 87(2)(b) told officers, "Don't touch me!" and went limp on the floor. § 87(2)(b) lay against the wall with his arms tucked under his chest and kicked his legs. PO Suam took a step back, took out his pepper spray and deployed it at § 87(2)(b) face and eyes at an arm's length. PO Suam did not issue any warnings to § 87(2)(b) nor did the other officers prior to deploying pepper spray. § 87(2)(b) relaxed his arms and screamed, and the officers applied handcuffs on him.

PO Suam stated that an officer may deploy their pepper spray in response to aggressive behavior, like punching or kicking. PO Suam decided to use his pepper spray on § 87(2)(b) because he was a physically large male and was uncooperative. § 87(2)(b) was taken to § 87(2)(b) Hospital for pepper spray in his eyes. PO Qosja was also removed to the hospital for pepper spray contact. No other officers were treated. § 87(2)(b) was ultimately charged with theft of services, resisting arrest, obstructing governmental administration and criminal trespass.

According to Arrest Report # § 87(2)(b) (**BR9**), § 87(2)(b) was arrested for theft of services, resisting arrest, obstructing governmental administration and criminal trespass.

The investigation requested § 87(2)(b) medical records from § 87(2)(b) Hospital. The request was not returned to date.

According to PO Suam's BWC video (**BR3**), at timestamp 1:00, PO Suam tells § 87(2)(b) to exit the station six times. PO Suam tells § 87(2)(b) that he needed to pay for his fare. At timestamp 1:40, PO Suam tells § 87(2)(b) "I don't wanna push you out. I'm just telling you to leave." § 87(2)(b) replies, "Please don't put your hands on me." At timestamp 2:36, PO Suam points to the exit and tells § 87(2)(b) "Let's go." At timestamp 2:45, PO Suam tells § 87(2)(b) "Let's go, sir. You have to exit. I told the last time. You cannot keep coming in and not pay." At timestamp 2:56, PO Suam tells § 87(2)(b) "You raise your hand, and you go through. It don't work like that." At timestamp 4:35, PO Suam tells § 87(2)(b) "I'm done talking." PO Suam extends one arm towards § 87(2)(b) as if to grab him. § 87(2)(b) left arm. § 87(2)(b) pulls his arm away and tell PO Suam, "Don't do this, bro." At timestamp 4:44, § 87(2)(b) back-peddled himself against a wall. PO Roldan holds § 87(2)(b) left arm and PO Russell grabs § 87(2)(b) right arm. § 87(2)(b) pulls his right arm away and pushes PO Russell's arm away from him. At timestamp 4:45, PO Suam attempts to grab § 87(2)(b) right arm. § 87(2)(b) slaps PO Suam's hand away. At timestamp 4:51, PO Russell and PO Roldan hold § 87(2)(b) by both of his arms. § 87(2)(b)

sways his arms from back to front. At timestamp 4:55, § 87(2)(b) hits PO Suam's hand by swinging his arms forward. PO Suam holds the front of § 87(2)(b) sweater. At timestamp 5:59, § 87(2)(b) drops to the floor. At timestamp 5:05, all of the officers attempt to grab § 87(2)(b) shoulders. § 87(2)(b) rolls on his stomach and twitches his body. At timestamp 5:19, PO Suam removes his pepper spray, extended his arm up at § 87(2)(b) face and deploys it. The officers cough and move away from § 87(2)(b) who is lying on the floor. At timestamp 5:40, PO Russel places § 87(2)(b) in handcuffs.

According to PO Roldan's BWC video (BR12), timestamp 4:07, PO Suam tells § 87(2)(b) "I'm done talking." PO Roldan stands on § 87(2)(b) left side, PO Russell stands on his right, and PO Qosja and PO Suam in front of § 87(2)(b). PO Suam extends his arm to grab § 87(2)(b) left hand. § 87(2)(b) pulls his arm away in an upwards motion. At timestamp 4:11, PO Suam touches the § 87(2)(b) right shoulder, and he pushed § 87(2)(b). § 87(2)(b) walks backwards towards the wall and the rest of the officers follow. At timestamp 4:17, § 87(2)(b) has his back against the wall and PO Suam hold his right arm. § 87(2)(b) says, "Get off me, bro." § 87(2)(b) appears to slap PO Suam left arm away and says, "Get your hands off me, bro!" At timestamp 4:23, PO Roldan grabs § 87(2)(b) left arm, while PO Russell and PO Qosja grabs § 87(2)(b) right side and arm. At timestamp 4:28, § 87(2)(b) shift is weight side to side as if to shake off the officers holding him. At timestamp 4:29, PO Roldan continues to grab § 87(2)(b) left arm while PO Russell and PO Qosja continues to hold the right arm. At timestamp 4:31, PO Suam's grabs the front of § 87(2)(b) sweater. § 87(2)(b) leans against the wall and drops to his knees and sits on the floor. At timestamp 4:33, the officers reach with their arms to grab the top of § 87(2)(b) shoulders. At timestamp 4:36, Roldan and PO Russell hold § 87(2)(b) at both sides of his shoulders. § 87(2)(b) repeatedly tells officers to "Get your hands off me." At timestamp 4:38, § 87(2)(b) bends his torso upwards and forward as if to sit up but then lies down again. § 87(2)(b) lies in a fetal position and is facing the wall. At timestamp 4:49 the officers continues to grab § 87(2)(b) upper torso and § 87(2)(b) tenses his body side to side. At timestamp 4:54, PO Suam points his pepper spray within inches from § 87(2)(b) face and deploys it.

According to PO Qosja's BWC video (BR11), at timestamp 1:57, PO Suam extends his hand within inches of § 87(2)(b) face and deploys his pepper spray. PO Suam is seen holding the pepper spray at § 87(2)(b) face until timestamp 2:01.

According to NYPD Patrol Guide Procedure 221-01(BR4), officers are allowed to use force "to stabilize a situation and reduce the immediacy of the threat so that more time, options, and/or resources become available. The goal is to gain the voluntary compliance of the subject, when appropriate and consistent with personal safety, to reduce or eliminate the necessity to use force." Further, "In determining whether the use of force is reasonable, members of the service should consider the following: a. The nature and severity of the crime/circumstances b. Actions taken by the subject c. Duration of the action d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders e. Whether the subject is actively resisting custody f. Whether the subject is attempting to evade arrest by flight g. Number of subjects in comparison to the number of MOS h. Size, age, and condition of the subject in comparison to the MOS i. Subject's violent history, if known j. Presence of hostile crowd or agitators k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence."

The video evidence obtained discredits § 87(2)(b) claim that PO Suam or other officers pushed him to the wall or to the floor. It is undisputed that § 87(2)(b) was uncooperative with officers when they stopped him for fare evasion. § 87(2)(g) § 87(2)(b) actively resisted when PO Suam and the other officers attempted to restrain him by

slapping PO Suam's hands, flailing his arms, and then kicking his legs. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegations A, B, C and D** be closed as *within NYPD guidelines*.

According to NYPD Patrol Guide Procedure 221-07 (BR5), officers are to deploy their pepper spray in an upright position, aim and discharge O.C. pepper spray into a subject's eyes for maximum effectiveness, using two, one second bursts, at a minimum distance of three feet, and only in situations when the uniformed member of the service reasonably believes that it is necessary. The pepper spray may be used to gain or maintain control of persons who are actively resisting arrest or lawful custody or exhibiting active aggression, or to prevent individuals from physically injuring themselves, members of the service, or other persons. Pepper spray may be used in arrest or custodial restraint situations where physical presence and/or verbal commands have not been, or would not be, effective in overcoming physical resistance. Officers are not to use their pepper spray on subjects who passively resist (i.e., minimal physical action to prevent a member from performing their lawful duty), and should avoid using pepper spray in small, contained areas such as automobiles and closets. The Patrol Guide defines 1) Passive Resistance as minimal physical action to prevent a member from performing their lawful duty. For example, a subject failing to comply with a lawful command and stands motionless and/or a subject going limp when being taken into custody. 2) Active Resistance as physical evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. 3) Active Aggression as threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent.

According to NYPD training materials (**BR10**), pepper spray "MUST be fired directly at the face to be effective. A maximum of two to one second bursts are recommended. Its effective range is three (3) to twelve (12) feet. DO NOT FIRE LESS THAN THREE (3) FEET from the subject since the pressure of the spray at close distances can cause damage to the eye due to the 'Hydraulic Needle Effect' also firing the pepper spray at close distances can cause the spray to splash back onto the officer causing him/her to become contaminated."

Based on the BWC video evidence obtained, the investigation credits PO Suam's statement that § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) The video evidence showed that PO Suam extended his arm and positioned his pepper spray within inches from § 87(2)(b) face, significantly closer than the prescribed 3 feet § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as *substantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
- PO Suam has been a member of service for seven years and has been a subject in one other CCRB complaint and one other allegation, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Roldan has been a member of service for nineteen years and this is the first CCRB complaint to which he has been a subject.
- PO Russell has been a member of service for eight years and has been a subject in one other CCRB complaints and one other allegation, none of which is substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Qosja has been a member of service for seven years and has been the subject in two other CCRB complaints and two other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On March 29, 2024, a Notice of Claim request was made to the NYC Comptroller's Office. The request will be added to the case file upon receipt.
- § 87(2)(b) [REDACTED] filed a notice of claim with the City of New York claiming personal, physical, and emotional injuries, pain and suffering, fear, and invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, missed work and lost wages, and seeking \$1,000,000.00 as redress (BR7).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 15

Investigator:	Jeffrey Tsui	INV Jeffrey Tsui	04/15/2024
	Signature	Print Title & Name	Date

Squad Leader:		IM Simon Wang	04/19/24
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date